

ECUMENICAL REFLECTIONS ON THE LUTHERAN–ROMAN CATHOLIC *SIMUL JUSTUS ET PECCATOR* CONTROVERSY

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PRECIS

The teaching that a believer is simultaneously righteous and a sinner, that is, *simul iustus et peccator*, is highly valued in the Lutheran confession. The Roman Catholic tradition, however, considers it unacceptable. In recent years, in ecumenical circles, ecumenists have made efforts, without avail, to overcome the differences on this issue. Therefore, this essay seeks to contribute to the *simul* debate in order to overcome the ecumenical impasse on this issue. The question that lurks in the background of this essay is: How can the Lutheran and Roman Catholic churches interpret the *simul* doctrine in such a way that no longer divides the churches? In this regard, I argue that it is possible for the traditions to overcome their differences on the *simul*, if both parties consider this teaching as a theologoumenon. This means that both churches could accept the concerns inherent in the *simul* teaching, although each of them might consider the content of such formula differently. Viewed from this hermeneutical perspective, the *simul* teaching no longer possesses church-divisive power.

Introduction

One of the most controversial and divisive issues between the Lutheran and the Roman Catholic traditions, no doubt, is the teaching that the justified is *simultaneously* righteous and a sinner. This has traditionally come to be referred to as the *simul iustus et peccator* (hereafter, *simul*). Upon closer examination, however, the issue behind this teaching is in fact much more complicated than the formula suggests. In any case, the *simul* can be seen as the core of the ecumenical debate on justification, because to it all the other controversial issues on justification return. Therefore, this study is an attempt to contribute to the *simul*

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debate in a bid to break open the ecumenical impasse on this particular issue. It is perhaps important to indicate that there are many complex issues surrounding the *simul* question. However, it is not my intention to solve all the problematic issues around the *simul*. On the contrary, I would like to set a modest goal by focusing on concupiscence as one of the problems.

The question that lurks at the background of this essay is how the *simul* could be viewed in a bid to attain visible unity of the churches without ignoring the concerns of either tradition. In answering, I shall ultimately argue that disagreement between the two churches may be overcome when the *simul* is seen as a theologoumenon, by which I mean a theological opinion that could be formally accepted by the two churches, although each of them might consider the content of the statement differently.¹ Such a theologoumenon, however, should not in any way undercut the basic truth of the normative Christian faith.

Undoubtedly, understanding the *simul* as a theologoumenon could resolve the *simul* controversy, thus safeguarding the unity of the churches without trivializing the concerns of either church. Needless to say, as Peter De Mey has argued, such unity is “the fruit of the salvific death of Christ Jesus, but it will also require of our churches a discipline of self-sacrifice.”² This self-sacrifice involves accepting as legitimate the theological opinion of the other church. In this regard, it is not the purpose of this essay to make statements of value as to which side is right and which one is wrong on this complex issue. Rather, its goal is to indicate how the two traditions understand the *simul* differently and how the conception of the *simul* as a theologoumenon could help dispel doctrinal tensions and strengthen the unity of the churches.

1. Background of the Simul Teaching

The *simul* doctrine, like any other doctrine, has a specific background and practical reference to the quest for Christian unity. Informed by this fact, this essay will proceed in four steps: First, I will offer brief background information about the idea that a Christian is at once righteous and a sinner. Second, before turning to the teaching of Martin Luther (1483–1546) regarding the *simul*, I will briefly analyze the position of Augustine of Hippo (354–430). Third, I will present a brief survey regarding how the *simul* has been handled in Lutheran–Roman Catholic dialogues. Fourth, I will offer a contribution to the *simul* debate. Finally, I will end the study with some concluding remarks.

As a preliminary remark, I note that the teaching that a believer is *at once justified and a sinner* is hardly the creation *de novo* of Luther, having been articulated first by Augustine. In this regard, Luther himself asserts: “I am neither the first nor the only man to say this [*simul*] since the Apostle. For St.

¹Jean-Miguel Garrigues employed the theologoumenon hermeneutical concept as a means through which to resolve the *filioque* controversy between Western and Eastern churches. See especially Jean-Miguel Garrigues, ed., *A Roman Catholic View of the Position Now Reached in the Question of the Filioque*, ed. Lukas Vischer, Spirit of God, Spirit of Christ: Ecumenical Reflections on the Filioque Controversy, vol. 103 (Geneva: World Council of Churches, 1981), pp. 149–163.

²Peter De Mey, “A Call to Conversion: An Analysis of the Princeton Proposal for Christian Unity,” in Freek Bakker, ed., *Rethinking Ecumenism* (Zoetermeer: Meinema, 2004), p. 211.

Augustine: 'All sin is forgiven in baptism, not so that it no longer exists, but so that it is no longer imputed.'³ Nevertheless, although Augustine is believed to have begun the *simul* teaching, Luther is considered the main defender because he taught and wrote radically about it. The *simul* teaching was an attempt by Luther and the Reformers to articulate the relationship between the most righteous God and utterly sinful human beings. The *simul* teaching was not just meant to disapprove self-righteousness but also to encourage the despairing believers that they might trust in God's mercy alone.

A. Augustine on *Concupiscentia* and the *Simul*

Augustine's insights into the *simul* evidently spring from his theological reflection on original sin, grace, and election. For Augustine believes that even after baptism the effect of original sin, namely, concupiscence, remains in the justified. From the context of Augustine's soteriology, concupiscence is the root cause of all subsequent sins. Already, in his 396 essay to *Simplician: De diversis quaestionibus ad Simplicianum*, Augustine defines concupiscence as "perversity and lack of order, that is, turning away from the Creator who is more excellent, and a turning to creatures which are inferior to him."⁴ Therefore, for him, the core of concupiscence is disregard for God.

In order to understand better what the problem between concupiscence and *simul* is, we need to have a closer look at Augustine's soteriology. For Augustine, before the fall of Adam, humankind was blessed and enjoyed communion with God (Gen. 3:1–24). After the primal sin, however, humankind was subject to sin and guilt, thus rendered helpless.⁵ The bishop of Hippo is deeply convinced that the responsibility for, and effects of, this sin fall on all human beings because symbolically all humankind was present in Adam's loins at the time of the fall.⁶ Therefore, sin came into the world through one person, and death came through sin, so death spread to all in whom all have sinned.⁷ The phrase "in whom" has been variously interpreted; however, due to the focused nature of this study we shall not enter into this discussion. Nevertheless, it suffices for the moment to note that Augustine translates it as implying human solidarity with Adam's sin in virtue of humans' presence in Adam's seed. Moreover, for him, original sin and its effects, namely, death, can be cleansed only through baptismal grace. In the *De civitate Dei*, Augustine further asserts that it is through baptism that one is set free from original sin. For him, no one can en-

³Jaroslav Pelikan, Hilton Oswald, and Helmut Lehmann, eds., *Luther's Works* (Philadelphia: Fortress Press, 1999), 32:209; hereafter *L.W.*

⁴Augustine, *De diversis quaestionibus ad Simplicianum*, 1.2.18. See also Jesse Couenhoven, "St. Augustine's Doctrine of Original Sin," *Augustinian Studies*, vol. 36, no. 2 (2005), p. 377.

⁵Augustine distinguished between primal sin and original sin. The former refers to the first sin committed by Adam and Eve, whereas the latter refers to the effects that originate from the primal sin (*De civitate Dei*, XIV 11, 26).

⁶For Augustine, the whole human race participated in some way in the sin of Adam, because whoever is born of the seed of Adam was already present in him in a mysterious way (*omnes enim fuimus in illo uno quando omnes fuimus ille unus*); see especially Augustine, *De civitate Dei*, XIII, 14.

⁷Couenhoven, "St. Augustine's Doctrine," p. 363.

ter the realm of heaven “except a man who is born of water and the Holy Spirit.”⁸ For the bishop of Hippo, even after justification, evil desire (*vitium*) or concupiscence remains in the justified.

However, Augustine, unlike Luther, is very optimistic about *concupiscentia carnis* in that even if it leads to sin, it can and must be overcome, thanks to the grace of God and the good desire of the spirit or *concupiscentia spiritus*. Furthermore, he does not equate concupiscence to original sin but rather considers it to be a sign of, and a punishment for, the original sin. Accordingly, in his *Contra duas Epistulas Pelagianorum*, the bishop of Hippo maintains with regard to *concupiscentia carnis*:

Even if it is called *sin*, it bears that name, *not because it is a sin*, but because it is produced by a sin. . . . [T]his concupiscence of the flesh is *itself forgiven* in baptism so that, though it is contracted by those who are born, it does no harm to those who are reborn . . . since its guilt contracted by birth has been forgiven by rebirth. For this reason *it is no longer a sin*, though it is called a *sin*.⁹

Contrary to this opinion, the Council of Trent itself maintained that justification does not only consist in “the forgiveness of sins but also in the sanctification and renewal of the inward being by a willing acceptance of the grace and gifts whereby someone from being unjust becomes just, from being an enemy becomes a friend, so that he is an heir *in hope of eternal life*.”¹⁰ It is therefore striking that Augustine, Luther, and the Council of Trent hold that in justification a Christian is inwardly renewed, regenerated, and incorporated into Christ—not just completely, but also really. For Augustine, however, although the disordered desires remain, both the guilt and sin are counted as forgiven.

B. Martin Luther’s Teaching on the *Simul*

As expected, Luther concurs with Augustine’s idea that *de facto* of the primal sin, humankind is sinful and incapable of its own salvation. However, God forgives sinners and justifies them for Christ’s sake. In his *Lectures on Romans*, as well as in his *Disputation concerning Justification* of 1536, Luther emphasizes that one is justified by faith alone and receives forgiveness of sins, but the justified remains *simul iustus et peccator*.¹¹ What this provides for our understanding is that insofar as sinners are reckoned to be holy before God, for Christ’s sake, they are righteous; yet, insofar as they continue to sin until death,

⁸Augustine, *De civitate Dei*, XIII, 7, 417. Cf. Anthony Lane, *Justification by Faith in Catholic-Protestant Dialogue: An Evangelical Assessment* (New York: Continuum, 2002), p. 45.

⁹Augustine, *Answers to the Two Letters of the Pelagians* (*Contra Duas Epistulas Pelagianorum*), I.13.27; emphases added.

¹⁰The Council of Trent, “Decree on Justification” (*Decretum de iustificatione*), chap. 7, in Norman P. Tanner, ed., *Decrees of the Ecumenical Councils*, vol. 2: *Trent to Vatican II* (London: Sheed and Ward, Ltd.; Washington, DC: Georgetown University Press, 1990), p. 673; emphasis in original.

¹¹*L.W.* 25:260. See also *L.W.* 34:167; and *Martin Luthers Werke, Kritische Gesamtausgabe* (Weimar: H. Bohlau, 1883–), 391:563–564; hereafter, *W.A.*

they are sinners. However, God really takes "sin in such a way that it does not remain sin, because he begins materially to purge and to forgive completely."¹²

In the work *Against Latomus* (1521), Luther refutes the argument of the Louvain theologians, as presented by Latomus, who holds that no sin remains in the justified after baptism.¹³ Luther thus argues: "it must not be said that baptism does not remove all sins; it indeed removes all, but not their substance. The power of all, and much of the substance, are taken away." He further maintains that "even after forgiveness there is still sin, but it is not imputed."¹⁴ For him, the sin that remains in the justified is in its nature truly sin, but only according to substance and not in its quantity, quality, or action, for it is totally passive.¹⁵ For this reason, the believer is not yet completely the person of faith in whom Christ lives; he or she remains the old Adam, the human being of flesh. Therefore, believers are helpless sinners who are daily in need of forgiveness. For Luther, the reality of sin remains, then, perpetually in this life, until the *parousia* when at last all the elect will be made perfectly righteous. In order to demonstrate that the believer is at once righteous and a sinner, Luther uses the metaphor of a sick person before the doctor. Thus, Luther can argue as follows.

Justification is similar to the case of a sick man who believes the doctor who promises him a sure recovery and in the meantime obeys the doctor's order in the hope of the promised recovery [from his sinful tendencies] and abstains from those things which have been forbidden him [by the doctor], so that he may in no way hinder the promised return to health or increase his sickness until the doctor can fulfil his promise to him.

Then follows the core of the *simul*: "Now is this sick man well? the fact is that he is both sick and well. He is sick in fact but he is well [regarded as righteous] because of the sure promise of the doctor, whom he trusts and who has reckoned him as already cured, because he is sure that he will cure him."¹⁶

In light of the teaching that the justified is at once a sinner and righteous, however, one may rightly ask whether there is any ontological transformation of the justified. Is one totally righteous and totally a sinner, or is one partly righteous and partly a sinner? Is one *at once* righteous and a sinner or already made righteous but then continues to sin? These questions constitute the core of

¹²L.W. 34:167.

¹³Ibid., 32:157. Latomus (1475–1544), previously known as Jacobus Masson, was a professor of the faculty of theology of the University of Louvain in Belgium in the 1520's. Latomus together with other theologians of the University of Louvain openly condemned Luther's writings as early as 1519. For more, see *Facultatis theologiae Lovaniensis doctrinalis condemnatio Martini Lutheri*, W.A. 6:175. Following Luther's response, the professors led by Latomus published a comprehensive defense of the original condemnation titled *Articulorum doctrinae fratris M. Lutheri per theologos Lovaniensis damnatorum ratio ex sacris literis et veteribus tractoribus* (1521). It is in response to the latter work that Luther published *Against Latomus*, whose subject matter is the teaching that a believer is *simul iustus et peccator*.

¹⁴L.W. 32:209. See especially 32:201.

¹⁵Ibid., 32:209.

¹⁶Ibid., 25:63. See also Rom. 7:15; Ted Dorman, "Justification as Healing: The Little-Known Luther," *Quodlibet Journal of Christian Theology and Philosophy*, vol. 2 (2000), pp. 1–12, especially p. 3.

the *simul* debate. I will attempt to answer these questions by clarifying certain points of view.

A number of concepts and distinctions will help us better to understand Luther's teaching on this subject. The primary distinction we will use is one between two ways in which the believer can be regarded as *simul iustus et peccator*. First, the believer can be viewed as *simul iustus et peccator* in a sense of being partly just and partly a sinner. We will call this a *partim/partim* reading of the *simul*.¹⁷ Second, the believer can be said to be *simul iustus et peccator* in the sense of being totally just and totally a sinner.¹⁸ We will call this a *totus/totus* reading of the *simul*. Additionally, in order to describe the Lutheran view, we need these two readings at the same time.

In order to explain how the justified is simultaneously a sinner and righteous, we need to delve a little deeper into the view of reality behind a different understanding of the *simul* question. We do so by introducing a second distinction, namely, between "substance ontology" and "relational ontology." Substance ontology is a view of the identity of a being of something (*esse*) in terms of its own properties rather than their relation to other beings. Relational ontology, then, refers to an identity of a being of something in terms of its relationship with other beings.¹⁹ Thus, in the "relational" sense, something is "what it is" in relation to some other object. It needs to be noted, however, that Luther never made this distinction. We employ these categories in order to better understand his teaching regarding the status of the justified person.

Drawing upon this twofold distinction, we can now attempt to describe the Lutheran idea that a believer is at once justified and a sinner. Lutherans maintain that the justified is *totus* righteous and *totus* sinful from the point of view of relational ontology. That means that the identity of the Christian is now no longer defined in terms of the believer's nature but in terms of his or her relationship to Christ. Thanks to this relationship, one can now be considered as *totus* righteous, not on account of what is in oneself, however, but on account of what is found in Christ. On account of oneself, that is to say, in terms of substance ontology, one is still *totus* a sinner.

Hence, one is righteous "through the forgiveness of sins, that is, through the judgment of God who accepts him as righteous for Christ's sake; and he is a sinner in himself, that is, as he now exists as a human being."²⁰ The relational approach and *totus/totus* reading of the *simul* excludes any merit on the part of

¹⁷W.A. 38:205. Cf. Paul Althaus, *The Theology of Martin Luther*, tr. Robert C. Schultz (Philadelphia: Fortress Press, 1966 [orig.: *Die theologie Martin Luthers*, 2nd ed. (Gütersloh: Gütersloher Verlagshaus Gerd Mohn, 1963)]), p. 242.

¹⁸W.A. 391:563–564.

¹⁹Philosophically understood, "an ontology of substance is an account of the being or identity of things in terms of their individual properties rather than their relations to other beings. A relational ontology, then, is an account of the being of things in terms of their relations to other things, or at least an account in which the relations of beings with each other constitute their being as an individual" (Maarten Wisse, "Towards a Truly Relational Theology: A Conversation with F. LeRon Shults," *Ars Disputandi*, vol. 4 (2004), note 2; online journal, available at <http://www.arsdisputandi.org/index.html?http://www.arsdisputandi.org/publish/articles/000160/index.html>).

²⁰L.W. 32:173. See also Althaus, *Theology of Martin Luther*, p. 242.

the believer. It also makes it impossible to account for the justification of believers in terms of becoming just in themselves, as in the Roman Catholic understanding of justification. It is clear enough that relational ontology always goes with the *totus/totus* reading of the *simul*. The *totus/totus* reading, however, is not the only aspect of the Lutheran doctrine of justification.

This leads us to the next insight, namely, that the sinner is also said to be partly righteous and partly sinful, which is the *partim/partim* reading of the *simul*. This description of the *simul* presupposes substance ontology. The *partim/partim* reading of the *simul*, which is also reflected in Luther's work *Freedom of a Christian*, elicits two insights. First, there is in the believer a part that is already in Christ, "in heaven" as Luther, following Paul, describes it. Second, the *partim/partim* reading also sees in the believer a part that is still on earth, in the flesh. This demonstrates the dialectic between the already and the not yet; thus, one is a sinner *in re* but justified *in spe* as Luther himself metaphorically asserts:

The person who believes in Christ is righteous and Holy through a divine imputation. . . . But while we are lifted up into the bosom of the Father and are clad with finest raiment, and our feet reach out below the garment, and Satan bites them whenever he can. Then the child struggles and cries out and realizes that he is still flesh and blood and that the Devil is still there, and plagues constantly, until the whole man grows holy and is lifted up out of this wicked evil world.²¹

In this latter reading of the *simul*, there is much more room for taking the inward righteousness of the believer into account by speaking of inward renewal and good works through the work of the Holy Spirit. Even then, one remains a sinner, for as Luther himself argues, "there is not a righteous man on earth who does good and sins not."²² Indeed for Luther, one is *totus/totus* a sinner before, during, and after justification.

II. Recent Efforts at Overcoming the Simul Controversy

In the Lutheran–Roman Catholic discussions, the *simul* issue is normally taken up in the context of ecumenical dialogues on justification. For the first time ever, the *simul* issue was discussed during the 1983 Lutheran–Roman Catholic dialogue in the United States. The U.S. dialogue was carried out under the auspice of the Lutheran Council, including the Lutheran Church–Missouri Synod and the predecessor bodies of the Evangelical Lutheran Church in America, as well as the United States Conference of Catholic Bishops.²³ During the dialogue, both churches asserted that a justified person is truly regenerated, renewed, and sanctified; hence, the justified person is a new creature. In this re-

²¹ *W.A.* 39:252, 8–12. See also *L.W.* 25:258.

²² 1 Kgs. 8:46. See also *L.W.* 32:180.

²³ References to their document *Justification by Faith* are from H. George Anderson, T. Austin Murphy, and Joseph a. Burgess, eds., *Justification by Faith*, Lutherans and Catholics in Dialogue 7 (Minneapolis, MN: Augsburg Publishing House, 1985).

gard, both dialogue partners were able to assert:

Justification, as a transition from disfavor and unrighteousness to favor and righteousness in God's sight, is totally God's work. By justification we are both declared and made righteous. Justification, therefore, is not a legal fiction. God, in justifying, effects what he promises; he forgives sin and makes us truly righteous.²⁴

Lutherans, however, defended the view that, even if one is renewed and sanctified, one remains at once righteous and sinful—hence, a need for a lifelong struggle with sin. In response, Catholics maintained that in baptism all sin, effects of sin, and the guilt thereof (*reatus culpae*) are cleansed. Thus, concupiscence and other effects of sin remain in the justified, and for this reason one has to continually ask for forgiveness. In this connection, George Lindbeck held that these perspectives are indeed reconcilable.²⁵ It is striking to see how close Lutherans and Catholics are when they both maintain that the Holy Spirit does not exempt a Christian from a lifelong struggle against sinful tendencies. This conversation, however, ended with a divergent set of concerns with regard to the *simul*. Thus, Catholics remained concerned about labeling *concupiscentia* sin, and Lutherans wondered whether Catholics were not overlooking the seriousness of sin.

In the second instance, the German dialogue discussed the *simul* question at some length.²⁶ Building on the U.S. dialogue, both partners believed that the justified is renewed and sanctified, but there remains in the justified a tendency to sin, namely, *concupiscentia*. Furthermore, the drafters of the document concede that *concupiscentia* is indeed opposed to God; however, it does not separate the believer from God, because it has been forgiven. For the Reformers, though, *concupiscentia* is “understood as sin, not in the ethical sense, as actual sin, but as the sin rooted in the person which lies at the root of all ethical sins[,] and it can also be used as a term for original sin.”²⁷ Nevertheless, after baptism, concupiscence becomes a ruled sin or *peccatum regnatum*. While Catholics, following the Council of Trent, maintained that *concupiscentia*, which the Apostle called *sin* (Rom. 6:12), has never been understood as truly sin, but it is from sin and inclines to sin.²⁸ This position is diametrically opposed to the Lutheran teaching

²⁴§156, no. 5, in *ibid.*, p. 71.

²⁵George Lindbeck, “A Question of Compatibility: A Lutheran Reflects on Trent,” in *ibid.*, pp. 230–240. See also Joseph A. Burgess, “Rewards, But in a Very Different Sense,” in *ibid.*, p. 102.

²⁶Our study of the *simul* will make use of the German dialogue results, which have been published in four volumes under a German title: *Lehrverurteilungen—kirchentrennend?* For further reading, consult Ökumenischer Arbeitskreis Evangelischer und Katholischer Theologen, *Lehrverurteilungen-Kirchentrennend? Materialien zur Lehre von den Sakramenten und vom Kirchlichen*, ed. Karl Lehmann and Wolfhart Pannenberg, vols. 1–4 (Freiburg i/B.: Herder; Göttingen: Vandenhoeck und Ruprecht, 1988). E.T. of vol. 1: Karl Lehmann and Wolfhart Pannenberg, eds., *The Condemnations of the Reformation Era: Do They Still Divide?* tr. Margaret Kohl (Minneapolis, MN: Fortress Press, 1990), especially pp. 29–68, “The Justification of the Sinner.”

²⁷Lehmann and Pannenberg, *Condemnations*, p. 31.

²⁸The Council of Trent, *Decree on Justification: Decretum de Iustificatione*, canon 5.

on the status of a baptized believer.

The specific import of the German dialogue lies in its assertion that "it does not seem fruitful to discuss the question of remaining sin in the Protestant sense, merely in the context of this concept," and that

Catholic theology has come much closer to the Protestant view in considering the concept of concupiscence, taking sharpest cognizance of human nature as a totality. It no longer pursues the tendency, still detectable in the Middle Ages, to detach a physical nature, "still" marked by concupiscence, from a spiritual nature "already" freed from concupiscence through justification.²⁹

These two insights are reflective of two thought-structures imbedded in the two traditions regarding the *simul* question. Nonetheless, the *simul* teaching remained one of the outstanding differences between the churches.

Moreover, the *Joint Declaration on the Doctrine of Justification* of 1999 (hereafter *Joint Declaration*) maintains that "[b]elievers are totally righteous, in that God forgives their sins through Word and Sacrament. . . . However, looking at themselves . . . they recognize that they remain also totally sinners."³⁰ This is to say that, on the basis of relational ontology, looking to Christ, believers are justified, but in terms of substance ontology, looking at themselves, the justified are totally sinners. This also means that apart from Christ believers are totally sinners, but by virtue of their participation in Christ the justified are totally righteous.

For Catholics, concupiscence is not *truly* sin. Moreover, *concupiscence* cannot and does not harm the justified if one does not consent to it. In clear terms, therefore, the Trent Fathers asserted that

in the baptized, concupiscence or a tendency to sin remains; since this is left as a form of testing, it cannot harm those who do not give consent but, by the grace of Christ, offer strong resistance; indeed, *that person will be crowned* . . . This concupiscence the Apostle sometimes calls sin, but the holy council declares that the catholic church has never understood it to be called sin in the sense of being truly and properly such in those who have been regenerated, but in the sense that it is a result of sin and inclines to sin.³¹

By asserting that concupiscence should not be understood as sin, the Fathers parted ways with both Augustine's and Luther's conception of concupiscence. Lutherans, on their part, consider concupiscence as really sin. For them, concupiscence is, to use the words of David Truemper, a "soft underbelly" that makes a Christian vulnerable to sin.³² In this connection, from a Lutheran point of

²⁹Lehmann and Pannenberg, *Condemnations*, p. 46.

³⁰Pontifical Council for Promoting Christian Unity and Lutheran World Federation, "Joint Declaration on the Doctrine of Justification," no. 29; available at http://www.vatican.va/roman_curia/pontifical_councils/chrstuni/documents/rc_pc_chrstuni_doc_31101999_cath-luth-joint-declaration_en.html

³¹The Council of Trent, "Decree on Original Sin" (*Decretum super peccato originali*), no. 5, in Tanner, *Decrees of the Ecumenical Councils*, vol. 2, p. 667; emphasis in original.

³²David G. Truemper, "Introduction to the Joint Declaration on the Doctrine of Justification,"

view, there are two ways in which to talk of the incompleteness of the renewal of the Christian life. First, by virtue of sin that remains in the justified, one is continuously exposed to the power of sin and is indeed a sinner (Rom. 6:12–14). Second, the justified is not excused from life and lifelong struggle with sin (Gal. 5:16). To this understanding belongs Paul's exhortation: "Therefore, do not let sin exercise dominion in your mortal bodies, to make you obey their passions" (Rom. 6:12). As regards the first view, Lutherans and Catholics have never agreed. As for the second view, however, the two churches are in agreement. These two views constitute the parameters of the *simul* controversy. Eventually, in the *Joint Declaration*, as the "Official Catholic Response" testifies, the dialogue partners could not reach common understanding in this area.³³ In what follows, I will present what I consider to be the way forward in the interpretation of the *simul* in an attempt to overcome this theological and ecumenical impasse.

III. Toward a New Ecumenical Perspective on the *Simul*

Even if Luther firmly taught that the justified is at once righteous and a sinner, it is becoming increasingly clear to biblical exegetes and theologians that there is hardly scriptural basis for this teaching. In 1963, for example, the Commission of Theology of the Lutheran World Federation at Helsinki indicated in their study that "[t]he Christian Bible does not know the idea of *simul iustus et peccator*. The Christian is 'holy' and no longer a sinner. It is true that both Paul and John deny that the baptized person is free from sin, but a consciousness of sin calling for a permanent posture of repentance is foreign to the Christian Bible."³⁴

The study commission argued that the *simul* teaching is nothing other than a "gradual individuation and psychologization of the doctrine of justification."³⁵ For the commission, the *simul* idea is an abstraction from Paul's dialectic between flesh and spirit, in an attempt to offer spiritual consolation to individual souls. Nevertheless, the commission was aware that there is a difference between the sin of the justified and that of the unbaptized person. Thus, a Christian should not be viewed as *simultaneously* saved and damned.³⁶ This new perspective on the *simul* teaching buttresses my thesis that the *simul* needs to be perceived as a theological opinion that should not be a major stumbling block on the road toward visible unity of the churches.

Interestingly, there exist some points of intercession between the Lutheran

in David E. Aune, ed., *Rereading Paul Together: Protestant and Catholic Perspectives on Justification* (Grand Rapids, MI: Baker, 2006), p. 38.

³³See Doctrinal Congregation, "Official Catholic Response to Joint Declaration," *Origins* 28 (July 16, 1998)130–132.

³⁴Commission of Theology, "A Report of Studies Conducted with the Lutheran World Federation, 1958–1963," *Lutheran World*, vol. 12, no. 1 (1965), p. 16. See also Krister Stendahl, *Paul among Jews and Gentiles* (Philadelphia, PA: Fortress, 1976), especially pp. 23–40.

³⁵Commission of Theology, "A Report of Studies," p. 17.

³⁶Martien Brinkman, *Justification in Ecumenical Dialogue: Central Aspects of Christian Soteriology in Debate* (Utrecht: Interuniversity Institute for Missiological and Ecumenical Research Publication, 1996), p. 178.

conception and the Catholic understanding of the justified: in the first place, that the righteous is a sinner insofar as concupiscence, which takes a new form as a ruled sin or *peccatum regnatum* that remains in him or her. Second, the justified also remain *simul iustus et peccator* in as much as they continue to sin throughout life. Conversely, when Catholics assert that the believer is *totus* righteous although he or she sins, they do not ontologically identify the sinner with sin. What this means for Catholics is that the justified is *simul iustus et peccator* in that the baptized are prone to sin and indeed sin daily. Admittedly, even a saint sins seven times a day and yet rises up again (Prov. 24:16). That after baptism the justified continues to sin is precisely because of the concupiscence that remains after baptism. Although this concupiscence is a contradiction to God, it does not separate one from God. In the end, one may rhetorically ask

how great is the difference between a conception in which the concupiscence present in the baptized is really sin, but does not separate one from Christ, so long as one does not let sin rule, and a conception in which concupiscence, because it does not separate the baptized from Christ, is only a tendency to sin and only becomes really sin, i.e., only separates from Christ, when one consents to it?³⁷

Thus understood, none of these theological views warrants the two churches to condemn each other as propagating heresy. Each tradition expresses its own theological insights into the effects of God's unconditional gift of salvation.

However, the question that arises here is: Why do we need to understand the *simul* formula as a theologoumenon? The precise motive for opting for this hermeneutical perspective is the fact that, in the context of the *Joint Declaration*, the *simul* teaching still constitutes an obstacle to the visible unity between the Lutheran and Catholic churches. Formally, despite the joint declaration that today the condemnations of the Reformation era are considered inapplicable, the Catholic Church still condemns the Lutheran partners on this issue. The "Official Catholic Response" to the *Joint Declaration* makes it clear that for Catholics the "notion of justified as sinner" is simply unacceptable. Thus, at a crucial point, the document asserts:

For Catholics, therefore, the formula "*at the same time righteous and sinner*," as it is explained in the beginning of No. 29 . . . , is not acceptable. This statement does not, in fact, seem compatible with the renewal and sanctification of the interior man of which the Council of Trent speaks. The expression "Opposition to God" (*Gottwidrigkeit*) that is used in Nos. 28–30 is understood differently by Lutherans and by Catholics, and so becomes, in fact, equivocal. In this same sense, there can be ambiguity for a Catholic in the sentence of No. 22, "*God no longer imputes to them their sin and through the Holy Spirit effects in them an active love*," because man's interior transformation is not clearly seen. So, for all these reasons, it remains difficult to see

³⁷Theodor Schneider and Gunther Wenz, *Gerecht und Sünder zugleich? Ökumenische Klärungen*. Dialog der Kirchen 11 (Freiburg: Herder, 2001), p. 439, quoted in Michael Root, "Continuing the Conversation: Deeper Agreement on Justification as Criterion and on the Christina as *simul iustus et peccator*," in Wayne Stumme, ed., *The Gospel of Justification in Christ: Where Does the Church Stand Today?* (Grand Rapids, MI: William B. Eerdmans Publishing Co., 2006), p. 55.

how, in the current state of the presentation given in the joint declaration, we can say that this doctrine on *simul iustus et peccator* is not touched by the anathemas of the Tridentine decree on original sin and justification.³⁸

In this context, therefore, it is difficult to see how the two churches can attain to a sustainable visible unity while this teaching is still “touched by the condemnations.” The hermeneutical approach that we suggest here will therefore provide a possibility to consider the *simul* as a theological opinion, which both traditions may interpret differently. This hermeneutical perspective is in agreement with, and in fact a contribution toward, the internally differentiated consensus method. Thus conceived, then, the *simul* formula no longer warrants the division of the churches.

Naturally, our approach raises another question: What will be the hermeneutical consequences of our thesis? This implies that the formula *simul iustus et peccator* remains an open question. In effect, for Lutherans, this means that, interpreting the *simul* in terms of relational ontology, the justified are considered *totally* righteous, yet, interpreted in terms of substance ontology, the justified are *totally* sinners. Although concupiscence is in opposition to God, it does not lead to damnation.³⁹ For Catholics, the justified is a new creation, insofar as one is reborn of the baptismal grace, but then one has continually to struggle against sinful tendencies that remain. Yet, the justified is a sinner inasmuch as, prompted by the remaining concupiscence, the justified continues to sin after baptism. It is thus important that the Roman Catholic tradition does not deny the fact that after baptism believers continue to sin. In light of this awareness, even if Vatican II does not ontologically identify humankind with sin, it nevertheless teaches that believers are sinners.⁴⁰ Clearly, *Lumen gentium*, no. 8, exemplifies this fact when it asserts that believers are indeed *simultaneously* sinners and holy. Indeed, the text deserves to be quoted here in full:

Christ was sent by the Father “to preach good news to the poor . . . to restore the broken-hearted” (Lk 4, 18), “to seek and to save the lost” (Lk 9, 10): in the same way the church surrounds with love all who are afflicted with human infirmity, indeed in the poor and the suffering it recognizes the face of its poor and suffering founder, it endeavours to relieve their need and in them it strives to serve Christ. While Christ “holy, blameless, unstained” (Heb 7, 26) knew no sin (see 2 Cor 5, 21), and came only to expiate the sins of the people (see Heb 2, 17), the church, containing sinners in its own bosom, is at one and the same time holy and always in need of purification and it pursues unceasingly penance and renewal.⁴¹

³⁸Doctrinal Congregation, “Official Catholic Response,” p. 130; emphases added.

³⁹Brinkman, *Justification in Ecumenical Dialogue*, p. 22.

⁴⁰Aloys Grillmeier, “The People of God,” in Herbert Vorgrimler, ed., *Commentary on the Documents of the Second Vatican Council II* (London: Herder and Herder, 1967), pp. 153–175, 151.

⁴¹Vatican II, “Dogmatic Constitution on the Church” (*Lumen gentium*), no. 8, in Tanner, *Decrees of the Ecumenical Councils*, vol. 2, p. 855; emphasis added. The original Latin text reads “*sancta simul et semper purificanda, poenitentiam et renovationem continuo presequitur*,” meaning that the members of the Church are “at one and the same time holy and always in need of purification.” Vatican II, “Dogmatic Constitution on the Church” (*Lumen gentium*), no. 8, in Tanner, *Decrees of the Ecumenical Councils*, vol. 2, p. 855, emphasis added.

A similar idea is expressed in Vatican II's *Decree on Ecumenism*. The decree gives insights into the Catholic *simul* when it asserts, "This people of God, though still in its members liable to sin, is growing in Christ during its pilgrimage on earth, and is guided by God's gentle wisdom, according to his hidden designs, until it shall happily arrive at the fullness of eternal glory in the heavenly Jerusalem."⁴² Hence, Vatican II simply enunciates what one would call a Catholic *simul*. Although the teaching of *Lumen gentium* on this issue is not essentially identical to Luther's insight regarding the status of the justified, it comes very close to his teaching.

To conclude, it behooves us to assert that there exist three degrees of agreement with regard to the status of the justified believer. First, the justified is truly and really forgiven, renewed, and sanctified. Second, there remains in the justified concupiscence or propensity to sin (1 Jn. 1:5–2:2). Third, it is clear that the justified must struggle with this tendency throughout life. However, the fact that Lutherans conceive human beings as totally sinful even prior to any ethical sin, and Catholics perceive human beings as potential sinners after baptism, constitutes the major difference between the two churches. Understandably, the radical nature of Luther's teaching on the *simul* was perhaps due to the polemical nature of the Reformation milieu. This prompts us to propose that there is a need to understand the *simul* teaching as a theologoumenon. In this regard, it is sobering to note that lots of ink, let alone blood, has been spilled over this soteriological teaching under investigation. Therefore, with great sense of humility, one acknowledges the difficulty involved in accepting such a hermeneutical perspective. This is even more difficult for those for whom the *simul* is an important teaching. However, in view of the unity of the church of Christ, the difficulties involved should not deter us from reflecting and discerning together the truth of our common faith.

Therefore, with the help of the differentiated-consensus method, the Roman Catholic Church can help interpret the *simul* in the manner that the justified is a sinner by virtue of the actual sins committed after baptism. Conversely, Lutherans can understand the justified as a sinner before, during, and after justification. In any case, this implies that the churches can together understand the justified as *simul iustus et peccator*, despite their differentiated interpretations of sin (*Joint Declaration*, nos. 29–30). To this position belongs the vision of Pope John XXIII, that "the common saying, expressed in various ways and attributed to various authors, must be recalled with approval: in essentials, unity; in doubtful matters, liberty; in all things, charity."⁴³ This is captured in the classic Latin saying: *In necessariis unitas, in dubiis libertas, in omnibus caritas*.

⁴²Vatican II, "Decree on Ecumenism" (*Unitatis redintegratio*), no. 3, in Tanner, *Decrees of the Ecumenical Councils*, vol. 2, p. 911. See also *Lumen gentium*, nos. 40 (pp. 880–881) and 65 (pp. 896–897).

⁴³John XXIII, "On Truth, Unity, and Peace: Ad Petri cathedram" (June 29, 1959), no. 72; see http://www.vatican.va/holy_father/john_xxiii/encyclicals/documents/hf_j-xxiii_enc_29061959_ad-petri_en.html.

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